

# **Smt. M. Vijayakumari vs Mr. M. Yuvaraj on 21 April, 2017**

**Author: A.S.Bopanna**

**Bench: A.S. Bopanna**

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 21ST DAY OF APRIL, 2017

BEFORE

THE HON'BLE MR. JUSTICE A.S. BOPANNA

CIVIL PETITION NO.55/2017

BETWEEN:

SMT.M.VIJAYAKUMARI,  
W/O. M.YUVARAJ,  
AGED ABOUT 30 YEARS,  
RESIDING AT 261,  
4TH MAIN ROAD, 3RD CROSS,  
P.C.EXTENSION, KOLAR TOWN,  
KOLAR - 563 101. ... PETITIONER

(BY SRI.S.VISWESWARAIAH, ADV.)

AND:

SRI.M.YUVARAJ,  
S/O. V.MANIKYAM,  
AGED ABOUT 35 YEARS,  
RESIDING AT NO.18/1,  
'F' CROSS, 4TH MAIN,  
MUNESHWARA BLOCK,  
P.G.HALLI, BENGALURU - 3. ... RESPONDENT

(BY SRI.S.NARENDRA, ADV.)

THIS CIVIL PETITION IS FILED UNDER SEC.24 OF  
CPC, PRAYING TO ORDER FOR WITHDRAWAL OF CASE IN  
MC NO.5177/2016 PENDING ON THE FILE OF HON'BLE VI  
ADDL. PRL. JUDGE, FAMILY COURT, BENGALURU AND  
TRANSFER THE SAME TO HON'BLE FAMILY JUDGE, AT  
KOLAR BY ALLOWING THE PETITION.

THIS CIVIL PETITION COMING ON FOR ADMISSION

THIS DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The petitioner is before this Court seeking that the petition in M.C.No.5177/2016 be withdrawn from the file of the VI Additional Principal Judge, Family Court, Bengaluru and be transferred to the learned Family Judge at Kolar.

2. The petitioner is the wife of the respondent. Due to certain disputes in their married life, they are residing separately. The respondent herein has instituted the petition under Section 13(1) (ia) of the Hindu Marriage Act, 1955 seeking dissolution of marriage. The said petition is pending in M.C.No.5177/2016 before the Family Court at Bengaluru.

3. The petitioner contends that it would not be possible for her to travel from Kolar and defend the petition effectively. It is also pointed out that the petitioner herein has filed a petition in M.C.No.6/2017 under Section 9 of the Hindu Marriage Act, 1955 seeking restitution of conjugal rights and also a petition in C.M.C.No.7/2017 seeking maintenance under Section 125 of the Criminal Procedure Code.

4. It is no doubt true, as pointed out by the learned counsel for the respondent, the said petitions are filed subsequent to the petition filed by the respondent. Even if that be the position, considering the fact that the petitions are filed under Sections 13 and 9 of the Hindu Marriage Act, 1955, there cannot be conflicting judgments and the petition in any event will have to be considered in one Court. From the petition averments, it is seen that the marriage of the parties had taken place at Sri Balaji Prarthana Mandhira, Kolar. Therefore, the Court at Kolar in any event would have the jurisdiction to entertain the petition.

5. In that view, keeping in view the convenience of the parties and also taking note that in any event, the respondent herein will have to defend the petitions filed by the petitioner at Kolar, all the petitions are directed to be considered in one place.

6. Accordingly, the prayer made in the petition is accepted. It is directed that the petition in M.C.No.5177/2016 be withdrawn from the file of the VI Additional Principal Judge, Family Court, Bengaluru and be transferred to the Family Court at Kolar to be listed along with M.C.No.6/2017 pending before the Court at Kolar. The parties shall appear before the Court at Kolar on the next date when M.C.No.6/2017 is listed. The transferee Court shall arrange to secure the papers of M.C.No.5177/2016 which is now transferred to the Court at Kolar and thereafter proceed further in accordance with law.

The petition is accordingly disposed of.

Sd/-

JUDGE ST